

(49)

Tentative Ruling

Re: ***In Re: Justin Antonio Kuripeth***
Superior Court Case No. 25CECG00041

Hearing Date: August 25, 2026 (Dept. 502)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To take off calendar.

Explanation:

On July 15, 2026, Petitioner's motion to consolidate cases for all purposes for Case Nos. 25CECG00038, 25CECG00039, 25CECG00040, and 25CECG00041, with Case No. 25CECG00038 being designated as the master file was granted. Rules of Court, rule 3.350 (c) requires that after a motion to consolidate has been granted that "for all purposes including trial, any subsequent document must be filed only in the lead case." Petitioner is required to file the petition and all other future documents related to Case No. 25CECG00041 in the master file, which is Case No. 25CECG00038. As the petition was filed in the wrong case after consolidation, the matter is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-21-26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***In re: Graceson A. Vongsaly***
Superior Court Case No. 26CECG00722

Hearing Date: August 25, 2026 (Dept. 502)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny, without prejudice, the petition to approve the compromised claim of minor Graceson A. Vongsaly. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

The petition must be on form MC-350, verified by the petitioner and include all information having bearing on the reasonableness of the compromise. (Cal. Rules of Court, rule 7.950; Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

The Petition submitted by petitioner seeks approval of the settlement of the personal injury claim of minor Graceson A. Vongsaly ("minor") against Ivanny Ines Garcia Lopez, by and through their insurer, ESIS Insurance. There are issues with the Petition that prevent approval.

Evidence of incurred medical expenses, negotiated reductions, and outstanding balances for medical expenses must be provided to support the corresponding amounts stated in the petition. Counsel declares that the collection agency confirmed that they will accept the \$554.18 payment to American Ambulance from counsel in the form of a check. However, the Petition fails to include evidence showing that these outstanding medical expenses have been paid. Documentation showing that the outstanding payment of \$554.18 due to American Ambulance has been paid is requested. Otherwise, the petition and proposed orders should reflect that the balance due will be paid from the settlement.

The amount owed to United Financial Casualty Company ("Progressive") is inconsistent between the petition, the supporting documents, and counsel's declaration. A letter from Progressive states that \$69.86 is owed for their payment to University Faculty Assoc, Inc. While counsel declares that a representative at University Faculty Assoc confirmed that the balance due was \$0, the outstanding \$69.86 is actually due to Progressive. As such, documentation showing that the amount owed to Progressive has been paid is requested. Otherwise, the petition and proposed orders should reflect that the balance due will be paid from the settlement.

Due to the aforementioned errors, the total medical expenses, reductions of medical expenses, and the resulting balance of medical expenses appear to be

